

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
KAMAR STEWART,

Plaintiff,

-against-

RONALDO WEEKES; BRYAN SCHEBLEIN; FORREST
HIRSCH; JOHN AND JANE DOE ONE THROUGH
FIFTEEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 24, 2022

Yours, etc.



DEVERNA LAW
JOHN PAUL DEVERNA, ESQ.
Attorney for Plaintiff
305 Broadway, 14th Floor,
New York, New York 10007
(212) 321-0025

TO:

POLICE OFFICER RONALDO WEEKES, Shield 21007, NYPD 75th Precinct, 1000 Sutter Avenue, Brooklyn, NY 11208

POLICE OFFICER BRYAN SCHEBLEIN, Shield 26121, NYPD 75th Precinct, 1000 Sutter Avenue, Brooklyn, NY 11208

LIEUTENANT FORREST HIRSCH, NYPD 75th Precinct, 1000 Sutter Avenue, Brooklyn, NY 11208

JOHN AND JANE DOE ONE THROUGH FIFTEEN, 1 Police Plaza Path, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KAMAR STEWART,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

RONALDO WEEKES; BRYAN SCHEBLEIN; FORREST
HIRSCH; JOHN AND JANE DOE ONE THROUGH
FIFTEEN,

JURY TRIAL DEMANDED

Defendants.

X

Plaintiff, KAMAR STEWART, by his attorneys, DeVerna Law, as and for his Verified
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.
2. Plaintiff's claims arise out of a June 17th, 2019, incident, in which defendants acting under color of state law, assaulted, and unlawfully arrested and detained Plaintiff, while other defendants unlawfully failed to intervene in that unlawful arrest. As a direct and proximate cause of the unlawful arrest and detainment, Plaintiff was detained within the New York City Police Department within the jurisdictional confines of New York County, was

deprived of his liberty for several hours and suffered serious and emotional injuries.

Plaintiff was maliciously prosecuted, until his case was later resolved in his favor.

3. This action and all associated claims have been timely brought within the applicable statutes of limitations.
4. The Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.
5. The Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of cost and attorneys' fees, and such other relief as the Court may deem just and proper.

PARTIES

6. Plaintiff is a resident of New York County, State of New York.
7. Defendant RONADLO WEEKES is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant WEEKES was assigned to the NYPD's 75th Precinct. Defendant WEEKES is being sued in his individual and official capacities.
8. Defendant BRYAN SCHEBLEIN is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant SCHEBLEIN was assigned to the NYPD's 75th Precinct. Defendant SCHEBLEIN is being sued in his individual and official capacities.
9. Defendant Lieutenant Officer FORREST HIRSCH is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, and as such was

acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant HIRSCH was assigned to the NYPD's 75th Precinct. Defendant HIRSCH is being sued in his individual and official capacities.

10. Defendants John and Jane Doe 1 through 15 were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe 1 through 15, but such information is believed to be in the possession of the defendants.
11. At all times relevant herein, Defendants John and Jane Doe 1 through 15 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 1 through 15 are sued in their individual and official capacities.
12. At all times here the mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

14. At all times relevant hereto, City of New York, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.
15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

16. On June 17, 2019, at approximately 12:30 AM, Plaintiff was lawfully walking in the vicinity of the northeast corner of Livonia Avenue and Warwick Street, and otherwise not committing a crime.
17. Based on information and belief, at about that approximate date, time, and location, Defendant Police Officers were in the area on an unrelated matter.
18. Based on information and belief, Defendants including Defendant WEEKES, SCHEBLEIN, and JOHN AND JANE DOE OFFICERS 1-15 did suddenly, and without adequate provocation, approached plaintiff, and while acting in concert, grabbed upon Plaintiff, assaulted plaintiff and thereafter, placed him under false arrest.
19. The Defendants did not observe Plaintiff committing any crime or violating any law or local ordinance.
20. Defendants did not have probable cause or reasonable suspicion to detain or arrest Plaintiff.
21. Plaintiff did not resist arrest.

22. Defendants, acting in concert, used an unreasonable and excessive amount of force in effectuating Plaintiff's arrest, and one Defendant punched Plaintiff in the face causing him emotional and physical injuries the extent of which are still unknown.
23. Based on information and belief, a Defendant supervisor, Defendant HIRSCH, was present on the scene and authorized the unlawful arrest of Plaintiff.
24. Defendants searched Plaintiff's person without his authority or permission.
25. Defendant found no contraband or anything illegal on Plaintiff.
26. Plaintiff was transported to the precinct where he was subjected to embarrassing and intrusive search of his body.
27. Again, Defendant found no contraband or anything illegal on Plaintiff.
28. Plaintiff was later transported to Central Booking.
29. The defendant police officers falsely stated to the Kings County District Attorney's Office that plaintiff had committed a crime despite knowing that they lacked a legal and a factual basis to allege that plaintiff committed any crime.
30. Plaintiff was unlawfully charged with Obstructing Governmental Administration in the Second Degree (PL-195.05) and Disorderly Conduct (PL-240.20(1)).
31. Plaintiff was held against his will for several hours. Plaintiff's case was later resolved in his favor.
32. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against plaintiff.

33. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, denial of fair trial, and excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Excessive Force Under

42 U.S.C. § 1983

34. The above paragraphs are here incorporated by reference as though fully set forth.
35. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
36. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Stop and Search Under

42 U.S.C. § 1983 Against Individual Defendants

37. The above paragraphs are here incorporated by reference as though fully set forth.
38. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiff without reasonable suspicion.
39. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
40. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
41. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

42. The above paragraphs are here incorporated by reference as though fully set forth.
43. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.
44. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
45. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
46. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
47. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
48. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
49. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. §1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth.
51. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

52. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused him to be prosecuted.
53. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
54. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
55. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
56. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

57. The above paragraphs are here incorporated by reference as though fully set forth.
58. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
59. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
60. Defendant intended to inflict substantial harm upon Plaintiff.
61. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

62. Defendant's actions deprived plaintiff of his constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
63. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

64. The above paragraphs are here incorporated by reference as though fully set forth.
65. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
66. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Denial of Right to a Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

68. The above paragraphs are here incorporated by reference as though fully set forth.
69. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.
70. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

71. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.
72. In withholding/creating false evidence against Plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
73. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.
74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

76. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- h) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
May 24, 2022



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

ATTORNEY'S VERIFICATION

JOHN PAUL DEVERNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **DEVERNA LAW**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

Dated: New York, New York
May 24, 2022



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
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New York, New York 10038
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SUPREME COURT OF THE STATE OF NE W YORK
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AND JANE DOE ONE THROUGH FIFTEEN,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038

To: CORPORATION COUNSEL OF NEW YORK
Attorney(s)for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for